



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FIRST CLASS MAIL, FACSIMILE AND EMAIL

{{insurance2.insurer.name}}

Attn: {{insurance2.umuimadjuster.name}}

{{insurance2.umuimadjuster.address1line1}} {{insurance2.umuimadjuster.address1line2}}

{{insurance2.umuimadjuster.address1city}}, {{insurance2.umuimadjuster.address1state}}

{{insurance2.umuimadjuster.address1zip}}

F: {{insurance2.umuimadjuster.fax1}}

Re: **Your Insured:** {{insurance2.insured.name}}
 Our Client: {{fullname}}
 Policy #: {{insurance2.policynumber}}
 Claim #: {{insurance2.claimnumber}}
 Date of Loss: {{intake.incidentDate| longDate}}

As you know, we represent {{fullname}} for injuries that were sustained from an accident which occurred on {{intake.incidentDate| longDate}}. This letter is to request a full waiver of {{insurance2.insurer.name}}'s subrogation interest in this claim.

We have received a final and top offer from the at-fault carrier for \${{insurance2.settlementamt}} to settle our client's claim. For reasons stated below, we believe this is a low-valued offer that will not make our client whole under the *Thiringer* test.¹ Considering the expense and risk of trial, we also believe avoiding litigation would be appropriate in this case.

As such, in an effort to avoid this costly and uncertain scenario, we are requesting that {{insurance2.insurer.name}} waive its subrogation rights in full, with respect to all benefits paid under our client's IP policy for this claim so that we may settle this matter in a way that would make {{client.salutation}} {{client.lastname}} as close to whole as possible while avoiding litigation.

For your review, below is a present accounting of the offer:

Top Settlement Offer:	\$
Attorney Fees:	\$
Medical Bills:	\$
Costs:	\$
{{insurance2.insurer.name}}'s Subrogation Interest:	\$
Total to Client:	\$

¹ *Thiringer v. American Motor Insurance Co.*, 91 Wn.2d 215, 588 P.2d 191 (1978)



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As you can see, our client's net award less your subrogation interest, is disproportionately low compared to [HIS/HER] injuries and not enough to compensate [HIS/HER] damages.

Two major considerations in any litigated personal injury matter are the nature of injuries and collision damage. As you are aware, our client's injuries are primarily soft tissue in nature, and [HIS/HER] collision damage was arguably minor, making the outcome of litigation uncertain at the hands of a jury or arbitrator.

In light of the above, we respectfully request that {{insurance2.insurer.name}} waive its subrogation interests under this claim in its entirety in an effort to allow our client an opportunity to settle her claim for fair compensation and avoid litigation.

Please confirm in writing that {{insurance2.insurer.name}} will waive its subrogation interest. If I have not heard from you **within ten working days** pursuant to WAC 284-30-360, I will presume that {{insurance2.insurer.name}} agrees to waive its subrogation interests under this claim.

Please contact me at your earliest convenience to relay your decision. You may reach me by phone at 253-951-6518, by fax at 877-813-6042, or by e-mail at tim@goldmedalinjurylaw.com. Thank you for your time and consideration.

Very Truly Yours,

Andrew Stikovic
{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}

AS/ [REDACTED]